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U.S. Department of State Diplomacy in Action

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Israel occupied the West Bank, Gaza Strip, Golan Heights, and East Jerusalem during the 1967 War. The West Bank and Gaza Strip now are administered to varying extents by Israel and the Palestinian Authority (PA). Pursuant to the May 1994 Gaza-Jericho Agreement and the September 1995 Interim Agreement, Israel transferred most responsibilities for civil government in the Gaza Strip and parts of the West Bank to the PA, while retaining responsibility in the West Bank and Gaza Strip for external security; foreign relations; the overall security of Israelis, including public order in the Israeli settlements; and certain other matters. Negotiations to address the permanent status issues including Jerusalem, borders, settlements, refugees, water, and other matters convened for an initial session in May 1996, lapsed for several years, and resumed late in the year pursuant to the September Sharm el-Sheikh Memorandum.

Pursuant to the agreements signed between the PLO and Israel, the PA by 1996 had full or partial control over most major Palestinian population centers in the Gaza Strip and West Bank. In 1998 and during the year, Israel implemented further redeployments, in partial fulfillment of its obligations under the Interim Agreement, the Wye River Memorandum, and the Sharm el-Sheikh Memorandum.

Israel and the Palestinian Authority have varying degrees of control and jurisdiction over the Gaza Strip and the West Bank. Israel continues to control certain civil functions and is responsible for all security in portions of the occupied territories categorized as Area C, which includes the Israeli settlements. In areas known as Area B, the PA has jurisdiction over civil affairs and shares security responsibilities with Israel. The PA has control over civil affairs and security in Area A. The PA also has jurisdiction over some civil affairs in Area C. Accordingly, this report discusses the policies and practices of both the Israeli Government and the PA in the areas where they exercise jurisdiction and control.

Israel continues to exercise civil authority in some areas of the West Bank through the Israeli Ministry of Defense's Office of Coordination and Liaison, known by the Hebrew acronym MATAK, which replaced the now defunct Civil Administration (CIVAD). The approximately 170,000 Israeli settlers living in the West Bank and Gaza Strip are subject to Israeli law and are treated better by Israeli authorities than are Palestinians. The body of law governing Palestinians in the Israeli-controlled portions of the territories derives from Ottoman, British Mandate, Jordanian, and Egyptian law, and Israeli military orders. Laws and regulations promulgated by the PA also are in force. The international community considers Israel's authority in the occupied territories to be subject to the Hague Regulations of 1907 and the 1949 Geneva Convention relating to the Protection of Civilians in Time of War. The Israeli Government considers the Hague Regulations applicable and states that it observes the Geneva Convention's humanitarian provisions.

In January 1996, Palestinians chose their first popularly elected Government in democratic elections, which generally were well-conducted. The 88-member Council and the Chairman of the Executive Authority were elected. The PA also has a cabinet of 30 ministers. PA Chairman Yasir Arafat continues to dominate the affairs of government and to make major decisions. Most senior government positions in the PA are held by individuals who are members of, or loyal to, Arafat's Fatah faction of the PLO. The Council meets regularly and discusses a range of issues significant to the Palestinian people and the development of an open, democratic society in the Gaza Strip and West Bank. Political commentators and members of the Council complain that it does not have sufficient influence on policy or the behavior of the executive. The PA judiciary is subject to executive influence.

Israeli security forces in the West Bank and Gaza Strip consist of the Israeli Defense Forces (IDF); the General Security Service (GSS or Shin Bet); the Israeli National Police (INP); and the paramilitary border police. Israeli military courts try Palestinians accused of committing security crimes in Israeli-controlled areas. Members of the Israeli security forces committed human rights abuses.

The Palestinian Police Force (PPF) was established in May 1994 and includes the Palestinian Public Security Force; the Palestinian Civil Police; the Preventive Security Force (PSF); the General Intelligence Service, or Mukhabarat; the Palestinian Presidential Security Force; emergency services and rescue; and the Palestinian Coastal Police. Other quasi-military security organizations, such as the military intelligence organization, also exercise de facto law enforcement powers. Palestinian police are responsible for security and law enforcement for Palestinians and other non-Israelis in PA-controlled areas of the West Bank and Gaza Strip. Israeli settlers in the occupied territories are not subject to PA security force jurisdiction. Members of the PA security forces committed human rights abuses.

The economy of the West Bank and Gaza Strip is small, poorly developed, and highly dependent on Israel. The economy relies on agriculture, services, and to a lesser extent, light manufacturing. Israel restricts the movement of persons and products into Israel and Jerusalem from the West Bank and Gaza. In addition, since 1993 Israel has applied "closures," or enhanced restrictions, on the movement of persons and products for lengthy periods following terrorist attacks. Israel enforced its closure policy less stringently than it did in 1998. Palestinians and their vehicles require permits to cross from the West Bank or Gaza into Israel and Jerusalem. Many West Bank and Gaza workers are employed at day jobs in Israel and Jerusalem, making their employment vulnerable to disruption. On occasion, Israel imposes a tightened version of closure in the wake of terrorist incidents, and when it believes that there is an increased likelihood of terrorist attacks or unrest in the occupied territories. Comprehensive, tightened closures also were instituted during major Israeli holidays. During these times, Israel cancels all travel permits and prevents Palestinians--even those with valid work permits--from entering Israel or Jerusalem. Israel imposed 15 days of tightened, comprehensive closure during the year; this represents a decrease in comprehensive closure days compared with the previous year. In past years, in response to changes in the security environment, the Israeli Government also periodically prohibited most travel between certain towns and villages within the West Bank (an "internal" closure), hampering the flow of goods and persons; however, this did not occur during the year. Palestinians who travel between some cities in the West Bank must pass through Israeli-controlled checkpoints where they sometimes are subjected to verbal and physical harassment by Israeli security personnel.

Both Israel and the PA were responsible for serious human rights abuses; however, while there were several marked improvements in Israel's human rights record in the occupied territories, the PA's human rights record worsened in several areas. Israeli security forces committed a number of human rights abuses during the year. Several Palestinians were killed in violent confrontations with Israeli security units, who at times used live ammunition against Palestinian demonstrators and shot at demonstrators or individuals indiscriminately. Israeli security forces abused Palestinians suspected of security offenses. However, a landmark decision by the Israeli High Court of Justice in September prohibited the use of a variety of abusive practices, including violent shaking, painful shackling in contorted positions, sleep deprivation for extended periods of time, and prolonged exposure to extreme temperatures. Following the ruling, there were no credible reports of such abuse by the security forces. Prison conditions are poor, and Israeli authorities arbitrarily arrest and detain persons. Prolonged detention, limits on due process, and infringements on privacy rights remained problems. Israeli authorities placed some limits on freedom of assembly and movement. PA security forces committed numerous serious human rights abuses during the year. PA security officials committed abuse, and in some cases torture, against prisoners and detainees. Palestinian

security forces killed three persons in violent confrontations. PA security forces used excessive force, and in some cases, live ammunition against Palestinian demonstrators and shot at demonstrators and individuals indiscriminately. Two other Palestinians died in PA custody. PA police officials claim that Ramadam Abu Shahin died in June after being accidentally shot during interrogation. Muhammad Ahmed Shreiteh died in PA police custody in Hebron. Family members alleged that he was tortured while in custody; the PA did not perform an autopsy or investigate his death. Due largely to the decrease in terrorist attacks during the year, PA security forces made fewer arrests than in previous years; however, there continue to be credible accounts of torture and abuse of prisoners and detainees. PA prison conditions are very poor. PA security forces arbitrarily arrest and detain persons, and prolonged detention is a problem.

Lack of due process is a problem. The courts are inefficient, lack staff and resources, and do not ensure fair and expeditious trials. The PA executive and security services frequently ignore or fail to carry out court decisions. Lack of due process is a serious problem in the PA's state security courts. PA security forces infringed on citizens' right to privacy. Although the PA claims to respect its citizens' right to express themselves freely, it limited freedom of speech and of the press. The PA continued to harass, detain, and abuse journalists. PA harassment led many Palestinian commentators, reporters, and critics to practice self-censorship. The PA placed some limits on freedom of assembly and association. Violence against women and "honor killings" persist. Societal discrimination against women and the disabled is a problem. Child labor is a problem.

During the year, one Palestinian died in an attack perpetrated by Israelis, while Israeli civilians, including settlers, harass and attack Palestinians in the West Bank and Gaza Strip. In general, settlers are not prosecuted for these acts and rarely serve prison sentences when convicted of a crime against Palestinians.

Palestinians in the West Bank and Gaza Strip continued to harass, abuse, and attack Israelis, especially settlers. Extremist Palestinian groups and individuals, including the militant Islamic Resistance Movement (HAMAS) and the Palestine Islamic Jihad (PIJ), continued their efforts to undermine the authority of the PA and halt progress in the Israeli-Palestinian peace process by wounding Israelis in 3 attacks in the occupied territories and Israel.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

Members of the Israeli security forces killed three Palestinians at military checkpoints and roadblocks inside the occupied territories. In these cases, Israeli authorities stated that the individuals were shot after failing to obey orders to halt. Palestinians dispute these accounts and charge that Israeli soldiers used excessive and unnecessary force.

On June 3, Israeli soldiers shot and killed Alla Yusef Mahmud Abu Sharkh at the Samu checkpoint near Hebron while he allegedly was trying to avoid stopping at the checkpoint.

On October 1, Khader Shaleh 'Afaneh Badwan was shot and killed by Israeli police personnel in Jerusalem while trying to escape police in a stolen car. Palestinian bystanders claim that police shot Badwan after he already had surrendered; Israeli police personnel say that they are investigating the incident.

On October 25, an IDF soldier shot and killed Musa Faiz Helail, a souvenir vendor, at Rachel's Tomb, a Jewish religious site in Bethlehem. The IDF soldier said that he shot Helail because he was attempting to stab him. Palestinian bystanders dispute this claim and assert that Helail did not try to harm the soldier.

Israeli security units also shot and killed three Palestinians who they state were engaged in acts of terrorism. On January 13, Israeli undercover police shot and killed a suspected Palestinian terrorist in a shootout south of Hebron in which an Israeli policeman also died. A Palestinian and an Israeli policeman also were wounded in the confrontation. In December Israeli security forces shot and killed two members of HAMAS in a Beit Awa shootout.

During the year, violent clashes between Palestinian demonstrators and Israeli security forces resulted in two Palestinian deaths and a number of wounded. IDF regulations permit the use of both rubber-coated metal bullets and live ammunition only when a soldier's life is in immediate danger, to halt fleeing suspects, to disperse a violent demonstration, or to fire on an "individual unlawfully carrying firearms." According to policy, soldiers should direct fire at the legs only and may fire at a fleeing suspect only if they believe that a serious felony has occurred and they have exhausted other means to apprehend the suspect. It is forbidden to open fire in the direction of children or women, even in cases of severe public disorder, unless there is an immediate and obvious danger to a soldier's life. Israeli soldiers and police sometimes used live ammunition or rubber-coated metal bullets, which can be lethal, in situations other than when their lives were in danger and sometimes shot suspects in the upper body and head.

On January 6, Israeli soldiers in Hebron shot and killed Bader Qawasmeh with live ammunition during a curfew in the Israeli-controlled section of the town. IDF soldiers say that they shot Qawasmeh by accident and that they believed that the toy gun he was playing with was real.

On January 26, Israeli policemen shot and killed Zaki Nur Al-Din 'Ubayd during a clash between soldiers and Palestinians who were protesting the demolition of a house in an East Jerusalem neighborhood. 'Ubayd reportedly was shot in the upper body with a rubber-coated metal bullet.

In May Mahmud Abu Hajar, 18, died from gunshot wounds sustained in March 1994. Israeli soldiers had shot Hajar in the head during a confrontation and he had been in a coma since that time.

One Palestinian security detainee died in an Israeli prison after suffering a heart attack (see Sections 1.a. and 1.c. of the Israel report).

Palestinian security forces shot and killed three Palestinians during confrontations this year. On March 10, Palestinian security forces shot and killed Ala Jumaa Al-hams, age 17, and Khamis Mahmoud Salama, age 17, during riots in the Gaza Strip; Palestinians were protesting the fact that the PA security court sentenced one security official to death and two others to long prison terms for killing another PA security official (see Sections 1.e. and 2.b.). Human rights organizations charged that PA security forces used excessive force. Palestinian security forces wounded between 40 and 70 other Palestinian demonstrators during confrontations the following day (see Section 1.c.).

During the year, two Palestinians died in PA custody. On June 27, 23 year-old Ramadan Abu Shahin of Nablus was shot and killed while being interrogated by Palestinian police at a police station in the West Bank town of Anabta; Abu Shahin was arrested at a PA roadblock because he was riding in a stolen car. PA officials say that in the course of their interrogation, Abu Shahin began pushing a police officer, who pushed him back while holding an AK-47 assault rifle. According to PA officials, the rifle accidentally went off, killing Shahin (see Section 1.c.). In December a PA military court found the police officer guilty of murder and sentenced him to 8 years in prison.

On October 4, 33 year-old Muhammad Ahmad Shreiteh died in PA custody in Hebron. According to prison officials, he died of a heart attack; however, family members alleged to one human rights organization that he was tortured while in PA police custody. The PA did not perform an autopsy and PA officials did not respond to human rights organizations' queries about the death (see Section 1.c.).

On February 26, Colonel Ahmad Atiyah Abu-Mustafa of Gaza was executed after the PA's state security court convicted him of raping a young boy. Human rights groups criticized the court's decision for ignoring due process (see Section 1.e.).

On February 11, Dr. Naeelah Hamdan Aied Garaeen was stabbed to death near the Old City of Jerusalem, possibly by an unidentified "serial stabber" who had killed a number of Palestinians in Jerusalem over the past few years. Later that same day, an unidentified Palestinian stabbed an Israeli bank guard in East Jerusalem, possibly in retaliation (see Section 1.c.).

During the year, the Palestinian Authority's state security court sentenced Jamil Munir Jadallah to life in prison for killing two Israelis in 1998. His lawyer complained that he had not had sufficient time to prepare his case.

On January 13, one undercover Israeli border policeman was killed and one was wounded in a shootout near Hebron with members of the radical HAMAS group. One HAMAS terrorist was killed and one was wounded in the confrontation.

In July an Israeli military court sentenced Salem Sarsour, a member of HAMAS to three consecutive life terms in prison for the 1998 killing of an elderly rabbi and for wounding dozens of soldiers and civilians in two grenade attacks.

b. Disappearance

Two Palestinians who disappeared under suspicious circumstances in 1997 remained unaccounted for during the year. Shafiq Abdul Wahhab, a suspected land dealer, disappeared in 1997 and his whereabouts remain unknown. The PA established a committee in 1997 to investigate his disappearance but has failed to locate him. Taysir Hmiadan Ziyadi, a Palestinian who married an Israeli woman in 1992 and received an Israeli identification card in 1996, disappeared in July 1997 during a trip to the Gaza Strip. His whereabouts remain unknown.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Israeli laws and administrative regulations prohibit the physical abuse of detainees; however, Israeli security forces abused, and in some cases tortured, Palestinians suspected of security offenses, and lawyers for security prisoners continued to file numerous challenges of the use of torture. However, a landmark decision by the Israeli High Court of Justice in September prohibited the use of a variety of abusive practices, including violent shaking, painful shackling in contorted positions, sleep deprivation for extended periods of time, and prolonged exposure to extreme temperatures. Following the ruling, there were no credible reports of such abuses by security forces. The High Court categorically rejected the Israeli Government's contention that these practices were "moderate physical pressure," and therefore permissible under the law, though the Court left open the possibility that such practices might be acceptable if specifically authorized by new legislation.

Prior to the High Court's decision, Israeli laws and administrative regulations prohibiting the physical abuse of detainees were not enforced in security cases (see Section 1.c. of the Israel report). The head of the GSS was empowered by government regulation to authorize security officers to use "moderate physical and psychological pressure" (which includes violent shaking) while interrogating detainees. These practices often led to excesses.

Most convictions in security cases before Israeli courts are based on confessions. A detainee may not have contact with a lawyer until after interrogation, a process that may last days or weeks. The Government does not allow International Committee of Red Cross (ICRC) representatives access to detainees until the 14th day of detention. This prolonged incommunicado detention contributes to the likelihood of abuse. Detainees sometimes claim in court that their confessions are coerced, but judges rarely exclude such confessions. It is likely that some Palestinian detainees fail to make complaints either from fear of retribution or because they assume that such complaints would be ignored. During the year, there were no known cases in which a confession was thrown out because of improper means of investigation or interrogation.

Israeli authorities also sometimes treat Palestinians in an abusive manner at checkpoints, subjecting them to verbal and physical harassment.

Israeli soldiers killed and wounded several Palestinians at checkpoints (see Section I.a.).

Israeli security forces shot and injured over a dozen Palestinians during confrontations. In March Israeli soldiers shot and wounded two Palestinians in Nablus who were protesting the uprooting of Palestinian olive trees.

On April 10, Israeli security forces shot and wounded two Gazan fisherman; the security forces charged that they were fishing in a prohibited zone and disobeyed orders to stop their boat.

In June Israeli security forces shot and wounded 15 Palestinians in the West Bank and 2 in the Gaza Strip during the "days of rage" demonstrations protesting Israeli settlement activity in the occupied territories (see Section 2.b.).

In July IDF soldiers shot and wounded nine Palestinians who stoned an Israeli military outpost in the Gaza Strip.

On November 20, Israeli soldiers shot and wounded 10 Palestinians in the West Bank during a protest organized by the Fatah Youth Organization to call for the release of Palestinian prisoners (see Section 2.b.).

The PA does not prohibit by law the use of torture or force against detainees. Human rights monitors report that PA security forces were responsible for torture and widespread abuse of Palestinian detainees. Such abuse generally took place after arrest and during interrogation. In 1995 the Gaza civil police commander issued to police officers in the West Bank and Gaza a directive forbidding torture during interrogation and directing the security forces to observe the rights of all detainees. However, the directive does not have the force of law; Palestinian security officers have not been issued formal guidelines on the proper conduct of interrogations. The PA lacks adequate equipment to collect and use evidence, and convictions are based largely on confessions. The high premium put on confessions heightens the possibility of abuse. PA security officials abuse prisoners by threatening, hooding, beating, and tying detainees in painful positions, forcing them to stand for long periods of time, depriving them of sleep and food, and burning detainees with cigarettes and hot instruments. Palestinians also alleged that they had been violently shaken while in PA custody. International human rights monitoring groups have documented widespread arbitrary and abusive conduct by the PA. Human rights groups say that use of torture is widespread and not restricted to those persons detained on security charges. Human rights groups state that those Palestinians who are suspected of belonging to radical Islamic groups are more likely to be treated poorly. In August Sami Naufal, a leader of the Islamic National Salvation Front, was arrested and detained for a week. He reportedly was beaten, denied sleep, held in painful and awkward positions, and beaten on the feet. In March General Intelligence forces arrested, detained, and physically abused a 15-year-old boy after his father escaped from prison (see Section 1.d.).

During the year, two Palestinians died in PA custody. In one case, family members claim that the prisoner died after being tortured (see Section 1.a.). Despite its promises to do so, the PA has failed to publicize the results of its investigations or to release the findings of its investigations to diplomats or human rights organizations.

In March Palestinian security forces wounded 40 to 70 Palestinian demonstrators during riots in the Gaza Strip (see Sections 1.a. and 2.b.).

During the year, there were several allegations that corrupt PA security officials abused their authority and detained persons in order to extort money from them and their families (see Sections 1.d. and 1.e.).

In November two signatories of a petition that accused the PA of corruption and failing to win significant gains from the peace process (see Sections 1.d. and 2.a.) were attacked. One of the signatories was attacked and wounded by unidentified assailants and the other was beaten by members of the General Intelligence Organization. The director of a human rights organization who signed a statement supporting the petition was subsequently hit on the head with a stone by unknown assailants.

Israeli settlers harass and threaten Palestinians in the West Bank and Gaza Strip. Human rights groups received several dozen reports during the year that Israeli settlers in the West Bank beat Palestinians and destroyed the property of Palestinians living or farming near Israeli settlements. For example, in December unidentified assailants threw a carpenter's file out of a building owned by settlers; the file pierced the skull of Hamad Diyis as he walked by. In general, settlers are not prosecuted for these crimes and rarely serve prison sentences even when convicted of a crime.

Palestinians continued to harass, abuse, and attack Israelis, especially settlers. While overall harassment of Israeli civilians by Palestinians was lower than in previous years, several Israelis were injured when Palestinians stoned Israeli cars in the West Bank and Gaza. During the year, members of extremist Palestinian groups attacked and wounded several Israelis in the West Bank and Gaza Strip, including shooting at Israeli motorists.

On January 4, an unidentified Palestinian shot at a bus carrying school teachers from the Kiryat Arba settlement to Hebron, wounding two women.

In January some Palestinians threw two firebombs at an Israeli police station to protest government approval of the construction of housing units for Jews in a Palestinian-populated Jerusalem neighborhood.

On February 11, a Palestinian man stabbed and wounded an Israeli bank guard in East Jerusalem, possibly in retaliation for the killing of a Palestinian earlier in the day (see Section 1.a.).

On August 3, two Jewish settlers were shot and wounded in Hebron by an unidentified Palestinian.

On October 30, an unidentified Palestinian gunman near the West Bank village of Tarqumiyah shot at a bus transporting Israeli tourists, injuring five persons, including children.

Prison conditions in Israeli facilities are poor. Facilities are overcrowded, sanitation is poor, and medical care is inadequate. Palestinians inmates held strikes and protests in support of a number of causes and to protest prison conditions throughout the year. Palestinians in Israeli prisons also held several strikes to protest detention without trial, limits on visits by family members or lawyers, and abuse by prison officials. In some Israeli prisons, authorities now allow Palestinian prisoners to shower every day, whereas in the past they were only allowed to bathe once every several days.

One Palestinian prisoner died in Israeli custody during the year due to a heart attack (see Section 1.a. and Sections 1.a. and 1.c. of the Israel report).

Israel permits independent monitoring of prison conditions, although human rights groups and diplomats sometimes encounter difficulties gaining access to specific detainees.

Prison conditions in PA facilities continue to be very poor. In many cases, facilities are overcrowded, and very old, dilapidated, and neglected. Food and clothing for prisoners is inadequate and must be supplemented by donations from families and humanitarian groups. Palestinian inmates held periodic strikes and protests throughout the year in support of a number of causes and to protest prison conditions and the practice of administrative detention. In some PA prisons, an effort is made to house religious prisoners together. Male and female inmates are housed separately.

During the year, two Palestinians died in PA custody (see Section 1.a.).

The PA permits independent monitoring of its prisons, although human rights groups and lawyers encountered difficulties arranging visits or gaining access to specific detainees. Human rights organizations say that their ability to visit PA jails and detention centers varies depending on which security organization controls the facility. Human rights organizations say that the police, Preventive Security Force, and Mukhabarat were generally cooperative in allowing them to inspect facilities and visit prisoners and detainees. However, they said that the Military Intelligence Organization was less responsive to such requests. Human rights monitors say that prison authorities are sometimes capricious in permitting them access to PA lock-ups and they rarely are permitted to see inmates while they are under interrogation. In June human rights groups complained that the Gaza police commander temporarily banned them from visiting clients in PA prisons.

Pursuant to an agreement signed in September 1996, the ICRC conducts prison visits but can be denied access to a detainee for 14 days. If abuses occur, they frequently happen during this 2-week period.

Some PA security organizations, including the General Intelligence Organization in the West Bank and the police, have appointed officials to act as liaisons with human rights groups. These officers claim that they meet with human rights organizations and members of the diplomatic community to discuss human rights cases.

Arbitrary Arrest, Detention, or Exile

Israeli authorities arbitrarily arrest and detain persons. Any Israeli policeman or border guard may arrest without warrant a person who has committed, or is suspected of having committed, a criminal or security offense in the occupied territories, except for areas under exclusive PA control.

Israeli soldiers also may arrest without warrant Palestinians and hold them for questioning for the same reasons. Most of these arbitrary arrests and detentions are for alleged security offenses. Persons arrested for common crimes usually are provided with a statement of charges and access to an attorney and may apply for bail. However, these procedures sometimes are delayed.

Israeli authorities have issued special summonses for security offenses; however, there were no reports that this occurred during the year. Israeli military order 1369 stipulates a 7-year prison term for anyone who does not respond to a special summons delivered to a family member or posted in the MATAK office nearest the suspect's home address. There were no reports during the year that anyone was convicted of failing to respond to a summons. Bail rarely is available to those arrested for security offenses. Although Israeli law does not allow Israelis under the age of 16 to be tried as adults, Israeli courts treat Palestinians over the age of 12 as adults. Defense for Children International (DCI) reported that 220 Palestinian minors were arrested and detained in Israeli prisons during the year, and that at year's end, there were 75 minors in Israeli prisons.

Israeli authorities may hold persons in custody without a warrant for 96 hours; they must be released unless a warrant is issued. Prearrest detention can last up to 11 days for Palestinians arrested in the occupied territories and up to 8 days for minors and those accused of less serious offenses. Authorities must obtain a court order for longer administrative detentions--up to 6 months from the date of arrest. At hearings to extend detention for interrogation purposes, detainees are entitled to be represented by counsel, although the defense attorney often is not allowed to see or hear the evidence against his client. Detainees either are released at the end of the court-ordered detention or sent to administrative detention if they are not indicted. If there is an indictment, a judge may order indefinite detention until the end of the trial. Israeli regulations permit detainees to be held in isolation during interrogation. Detainees have the right to appeal continued detention.

Although a detainee generally has the right to consult with a lawyer as soon as possible, in security cases authorities may delay access to counsel for up to 15 days. Higher-ranking officials or judges may extend this period. Access to counsel is denied routinely while a suspect is being interrogated, which sometimes can last several weeks. Authorities must inform detainees of their right to an attorney and whether there are any orders prohibiting such contact.

A number of factors hamper contacts by Palestinians in Israeli prison and detention facilities with their lawyers, families, and human rights organizations. The Israeli Government routinely transfers Palestinians arrested in Israeli-controlled areas of the occupied territories to facilities in Israel, especially the prison in Ashkelon and the military detention center in Megiddo, near Afula. Israeli authorities have been known to schedule appointments between attorneys and their detained clients, only to move the clients to another prison prior to the meetings. Authorities reportedly use such tactics to delay lawyer-client meetings for as long as 90 days. Palestinian lawyers also have trouble traveling to see their clients during Israeli-imposed closures. Israel requires Palestinian attorneys to acquire permits to enter Israel to see their clients held in prisons there. Human rights groups say that Palestinian lawyers from the Gaza Strip have a harder time obtaining these permits than their West Bank counterparts and that they are denied entry into Israel more frequently than West Bank lawyers. Relatives of Palestinian prisoners also complain that sometimes they only learn that visitation rights are canceled when they arrive at the prison following a trip of many hours from the occupied territories.

Family access to Palestinian prisoners improved during the year. Nevertheless, male family members between 16 and 40 years of age, and any family members with security records, are still barred from visiting relatives in facilities in Israel. The ICRC reported that it was easier than in previous years for families to visit inmates in Israeli jails and detention centers in part because Israel imposed fewer days of "tightened closure" on the occupied territories.

Israeli authorities claim that they attempt to post notification of arrest within 48 hours. Nevertheless, Palestinian suspects often are kept incommunicado for longer than 48 hours. Even if an arrest becomes known, it is often difficult to get information on where a detainee is being held or whether he has access to an attorney. Palestinians generally locate detained family members through their own efforts. Palestinians can check with a local ICRC office to determine whether it has information on the whereabouts of a family member. A senior officer may delay for up to 12 days notification of arrest to immediate family members and attorneys. A military commander may appeal to a judge to extend this period in security cases for an unlimited time.

Evidence used at hearings for administrative detentions is secret and unavailable to the detainee or his attorney. During hearings to appeal detention orders, the detainee and defense lawyer are required to leave the courtroom when secret evidence is presented. Israeli authorities maintain that they are unable to present evidence in open court because doing so would compromise the method of acquiring the evidence. In July 1998, the High Court of Justice ruled that judges, rather than military officials, can renew administrative detention orders beyond a 6-month period. Detainees may appeal detention orders, or the renewal of a detention order, before a military judge, but their chances for success are very limited. During the year, some succeeded in persuading the courts to shorten their detentions.

The overall number of Palestinian prisoners and administrative detainees in Israeli jails fell for the third straight year. Human rights organizations attribute this drop to the continuing absence of major terrorist attacks; in the past, Israeli officials arrested hundreds of Palestinians suspected of terrorist links after major terrorist attacks. In addition, Israel released 350 Palestinian security prisoners pursuant to its obligations under the Sharm el-Sheikh Memorandum. At year's end, 1,354 Palestinian prisoners and detainees were incarcerated in Israeli prisons, military detention centers, and holding centers, a decrease from 1,634 in 1998. According to the Government, 18 Palestinians were in administrative detention at year's end, compared with 83 at the end of 1998. Several have been held for more than 1 year.

Many Palestinians under administrative detention during the past 3 years have had their detention orders renewed repeatedly without meaningful chance of appeal. In July the Israeli Government released the longest-serving Palestinian from administrative detention. Usama Barham, a West Bank Palestinian, was arrested in September 1993 for his affiliation with the terrorist Palestine Islamic Jihad organization and had been held in continuous administrative detention. His release followed an intense effort by human rights organizations and Israeli activists.

PA security forces arbitrarily arrested and detained persons. The PA does not have a uniform law on administrative detention, and security officials do not always adhere to the existing laws in the West Bank and Gaza Strip. Laws applicable in Gaza, which do not apply to the West Bank, stipulate that detainees held without charge be released within 48 hours. These laws allow the Attorney General to extend the detention period to a maximum of 90 days during investigations. Human rights organizations and the PA Ministry of Justice assert that PA security officials do not always adhere to this regulation. Prevailing law in the West Bank allows a suspect to be detained for 24 hours before being charged. The Attorney General may extend the detention period.

The PA Chairman, Yasir Arafat, has not signed the Basic Law and other laws passed by the Palestinian Council (PC) since 1996, which were designed to limit executive branch abuses and to delineate safeguards for citizens. This lack of safeguards has contributed to the tendency of PA security forces to refuse to carry out High Court orders to release detainees.

In some cases, the High Court of Justice ordered the release of prisoners detained for years without trial, and PA security forces released the prisoners several months or a year later. In November 1997, the High Court ordered the release of HAMAS activist Mahmud Muslah; Muslah remained in detention at year's end. In February the High Court ordered the release of Wa'el Farraj, who has been detained without charges since 1996; Farraj remained in detention at year's end.

PA security forces illegally held 14-year-old Yasser Allan Wahidi in detention for 53 days before releasing him on January 17.

According to the Palestinian Independent Commission for Citizens Rights, the High Court ordered approximately 60 detainees released during the year. Of these, only a handful were released from jail. Human rights groups estimate that the PA has held approximately 150 prisoners for more than a year without charge, and that the total number of Palestinians in PA jails reached 842 by year's end.

In January nearly 70 detainees in the PA-run Jneid Prison staged a hunger strike to protest being held for an extended period of time without charge or trial. In February hundreds of Palestinians held demonstrations in Nablus, Hebron, and Gaza to demand the release of administrative detainees in PA prison facilities (see Section 2.b.).

Palestinian security forces sometimes detained or placed under house arrest the relatives of alleged security criminals. On March 2, the General Intelligence Forces arrested and detained for 20 days 15-year-old Bilal Yehya Al-Ghoul after his father, held for terrorist activity, escaped from a Gaza prison. The minor reported that he was subjected to abuse and torture during his detention (see Section 1.c.).

Lawyers and PA judicial officials acknowledge that, in contravention of the law, PA security services sometimes arrest and detain persons without informing judicial officials. During the year, there were allegations that PA security officials in Gaza arrested and detained Palestinians in order to extort money from them and their families. A Gazan gold merchant, accused of fraud and tax evasion, was detained by security officials without trial for weeks and finally released only after he paid a large "fine" that was levied by a state security court (see Section 1.e.).

PA authorities generally permit prisoners to receive visits from family members, attorneys, and human rights monitors, except for prisoners held for alleged security offenses. PA security officials do not always permit lawyers to see their clients. In principle detainees may notify their families of their arrest, but this is not always permitted.

Human rights organizations report that lawyers sometimes were denied access to their clients during the year. The Society for the Protection of Human Rights and the Environment (LAW) and the Palestinian Centre for Human Rights (PCHR) reported that they were denied access to clients detained in Gaza prisons because of their reports about human rights violations committed by PA officials against detainees (see Section 4).

PA security services have overlapping or unclear mandates that often complicate the protection of human rights. Under existing law in the West Bank, only the PA's civil police force is authorized to make arrests. In practice all security forces are known to detain persons at various times. The operating procedures and regulations for the conduct of PA security personnel in the various services still are not well developed and have not yet been made fully available to the public.

There are many detention facilities in the West Bank and Gaza Strip administered by the overlapping PA security services, a situation that complicates the ability of families, lawyers, and even the Ministry of Justice to track detainees' whereabouts. Security services, including Preventive Security, General Intelligence, Military Intelligence, and the Coast Guard have their own interrogation and detention facilities. In general these services do not, or only sporadically, inform families of a relative's arrest. Most PA security officers remain ignorant of proper arrest, detention, and interrogation procedures, as well as basic human rights standards. Human rights groups continue to provide basic human rights training to PA security services. During the year, human rights groups provided training to representatives of all the PA security services, including the PA Military Intelligence Service. During the year, at least 250 PA security officials participated in human rights courses, bringing the total number of security officials who have graduated from human rights courses to more than 1,550 since the PA's establishment in 1994, according to human rights groups.

PA security forces continued to harass and arbitrarily arrest and detain journalists, political activists, and human rights advocates, who criticized the PA and its policies. A number of journalists were arrested and detained and newspapers and television stations were shut down for expressing views or covering topics unacceptable to the Palestinian Authority (see Section 2.a.).

In November PA security forces arrested eight persons and placed two under house arrest who were signatories of a petition that accused the PA of corruption and failing to win significant gains from the peace process. The PA did not arrest the nine members of the Palestinian Council who also signed the petition and enjoyed parliamentary immunity (see Section 2.a.). On December 19, the PA released six of the signatories; however, 2 remained in detention at year's end.

Neither the Israeli Government nor the PA forcibly deported any Palestinians from the occupied territories during the year.

e. Denial of Fair Public Trial

Israeli law provides for an independent judiciary, and the Government respects this provision. However, in the past, the Israeli judiciary routinely acquiesced to the Government's position in security cases. The landmark Israeli High Court ruling in September (see Section 1.c.) marked a major change in this practice. Palestinians accused by Israel of security offenses in Israeli-controlled areas of the occupied territories are tried in Israeli military courts. Security offenses are defined broadly and may include charges of political activity, such as membership in outlawed organizations. Charges are brought by military prosecutors. Serious charges are tried before three-judge panels; lesser offenses are tried before one judge. Defendants have the right to counsel and to appeal verdicts to the Court of Military Appeals, which may accept appeals based on the law applied in the case, the sentence, or both. The right of appeal does not apply in all cases and sometimes requires court permission. The Israeli military courts rarely acquit Palestinians of security offenses, but sentences sometimes are reduced on appeal.

Trials sometimes are delayed for several reasons: Witnesses, including Israeli military or police officers, do not appear; the defendant is not brought to court; files are lost; or attorneys fail to appear, sometimes because they have not been informed of the trial date or because of travel restrictions on Palestinian lawyers. These delays add pressure on defendants to plead guilty to minor offenses; if they do, an "expedited" trial may be held, in which a charge sheet is drawn up within 48 hours and a court hearing scheduled within days.

By law most Israeli military trials are public, although access is limited. Diplomats are allowed to attend military court proceedings involving foreign citizens, but there have been delays in gaining admission. Most convictions in military courts are based on confessions. Evidence that is not available to the defendant or his attorney may be used in court to convict persons of security offenses. There is frequently no testimony provided by Palestinian witnesses either for or against Palestinians on trial. Israeli authorities maintain that this is due to the refusal of Palestinians to cooperate with the authorities. Physical and psychological pressures and reduced sentences for those who confess can induce security detainees to sign confessions. Confessions usually are given in Arabic but translated into Hebrew for the record because, authorities maintain, many Israeli court personnel speak Arabic but few read it. Palestinian detainees seldom read Hebrew and therefore often sign confessions that they cannot read.

Crowded facilities and poor arrangements for attorney-client consultations in prisons hinder legal defense efforts. Appointments to see clients are difficult to arrange, and prison authorities often fail to produce clients for scheduled appointments.

Israeli settlers in the West Bank and Gaza Strip accused of security and ordinary criminal offenses are tried under Israeli law in the nearest Israeli district court. Civilian judges preside, and the standards of due process and admissibility of evidence are governed by the laws of Israel, not military orders. Settlers convicted in Israeli courts of crimes against Palestinians regularly receive lighter punishment than Palestinians convicted in Israeli courts of similar crimes against either Israelis or other Palestinians.

There were no reports that the Israeli Government held political prisoners.

The PA courts are inefficient, lack staff and resources, and as a result often do not ensure fair and expeditious trials, and the PA executive and security services frequently ignore or fail to carry out court decisions.

The PA inherited a court system based on structures and legal codes predating the 1967 Israeli occupation. In the civil court system, cases initially are tried in courts of first instance. There are two appeals courts, one located in Gaza City and the other in Ramallah, which handle appeals from the lower courts. The appeals courts also function as the Palestinian High Court. The decisions of the High Court are not always respected by the executive or enforced by the Palestinian security agencies. In 1995 the PA established state security courts in Gaza and the West Bank to try cases involving security issues. Three military judges preside over each court. A senior police official heads the state security court in Jericho, and three judges preside over it. There is no right of appeal, but the PA Chairman reviews the court's findings and he may confirm or reject the decision. The PA Ministry of Justice has no jurisdiction over the state security courts, which are subordinate only to the Chairman.

One death sentence was carried out in February (see Section 1.a.), but serious questions were raised about lack of due process in the case. In February a Palestinian Colonel was executed after the PA's state security court convicted him of raping a young boy. Human rights groups criticized the decision; they complained that the trial lasted for less than two hours, the defendant did not have sufficient time to prepare his defense, there was no appeals process, and the charges were ill-defined. They also charged that the court had based its decision on public opinion and popular pressure rather than the dictates of law. Other Palestinians convicted by the state security courts received sentences ranging from several years in prison to life in jail with hard labor.

In November Khalid Al-Qidreh was appointed Prosecutor General of the state security courts. Human rights organizations criticized the appointment, saying that it helped institutionalize the controversial court system. They also criticized Al-Qidreh's appointment because he had been dismissed as PA Attorney General in 1997 because of allegations of corruption.

The Gaza legal code derives from British Mandate law, Egyptian law, and PA directives and laws. Pre-1967 Jordanian law applies in PA-controlled areas of the West Bank. Bodies of law in the Gaza Strip and West Bank have been modified substantially by Israeli military orders. According to the Declaration of Principles and the Interim Agreement, Israeli military decrees issued during the occupation theoretically remain valid in both areas and are subject to review pursuant to specific procedure. The PA states that it is undertaking efforts to unify the Gaza and West Bank legal codes, but it has made little progress. Human rights advocates claim that the PA's judiciary does not operate consistently.

The court system in general is recovering from years of neglect; many of the problems predate PA jurisdiction. Judges and staff are underpaid and overworked and suffer from a lack of skills and training. Court procedures and record keeping are archaic and chaotic. The delivery of justice is often slow and uneven. The ability of the courts to enforce decisions is extremely weak, and there is administrative confusion in the appeals process. A heavy caseload exacerbates these systemic problems.

The PA Ministry of Justice appoints all civil judges for 10-year terms. The Attorney General, an appointed official, reports to the Minister of Justice and supervises judicial operations in both the Gaza Strip and West Bank. In June Zuhair Sourani was appointed Attorney General and Radwan Al-Agha was appointed Chief Justice. Both positions had been vacant for over a year. In September, Arafat decreed that the Chief Justice had the authority to appoint all judges in the West Bank. Human rights organizations and judicial officials criticized the decision, saying it contravened existing law, which stipulated that a judicial council was responsible for appointing judges. West Bank judges held a short-lived strike to protest Arafat's decision.

In November Abd Al Latif Abd Al Fattah, who was convicted of complicity in the torture death of a Palestinian detainee, was appointed as a public prosecutor. In 1998 a PA military court had convicted Abd Al Fattah, then the head of the Mukhabarat's interrogation section in Jericho, of "negligence" for failing to provide timely medical care to Walid Qawasmi, who died in Mukhabarat custody. While in detention, Qawasmi, who was detained for "security reasons", suffered a blow to the head that caused a cerebral hemorrhage and death. Human rights groups viewed the appointment as a sign of the PA's lack of commitment to fostering rule of law in the occupied territories. Fourteen human rights organizations petitioned Arafat to rescind the appointment. In December Abd Al Fattah reportedly was reassigned to the office of the Prosecutor General of the state security courts.

Human rights organizations say the PA's state security courts fail to afford defendants due process. The PA usually ignores the legal limits on the length of prearrest detention of detainees suspected of security offenses. Defendants often are brought to court without knowledge of the charges against them or sufficient time to prepare a defense. They typically are represented by court-appointed lawyers, who often are not qualified. Court sessions often take place on short notice in the middle of the night and without lawyers present. In some instances, security courts try cases, issue verdicts, and impose sentences in a single session lasting a few hours.

In March a state security court sentenced a security official to death for killing another security official. Human rights groups criticized the proceedings because the accused had inadequate legal representation, the judges were incompetent, and the court ignored exculpatory evidence. The sentence was not carried out.

During the year, the state security courts adjudicated cases that fell far outside the scope of the courts' original mandate. In addition to "security" cases, the courts have on occasion dealt with tax cases and economic crimes, such as smuggling. In January PA Chairman Arafat ratified a state security court decision that found a Gazan, Hisham Rabah Al-Hitu, guilty of tax irregularities. The court sentenced Al-Hitu to 7 years imprisonment with hard labor, ordered him to pay a fine of \$1.25 million (5 million NIS) to the PA treasury for "sabotaging the national economy," and to forfeit his family estate. The Palestinian Independent Commission for citizens' rights criticized the referral of tax irregularities cases to the state security courts as a "flagrant encroachment on the mandate and jurisdiction of the regular judiciary." A Gazan gold merchant, accused of fraud and tax evasion, was detained by security officials without trial for weeks and finally released only after he paid a large "fine" that was levied by a state security court (see Section 1.d.).

Several prominent Gazan businessmen agreed to pay "fines" or "taxes" to the PA Ministry of Finance reportedly due to fear of being tried and convicted in a state security court.

There were no reports during the year that persons were convicted for their political beliefs. In 1997 the PA Attorney General acknowledged that the PA held at least 100 political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

Israeli military authorities in areas of the West Bank under their control may enter private Palestinian homes and institutions without a warrant on security grounds when authorized by an officer of the rank of lieutenant colonel or above. In conducting searches, the IDF has forced entry and sometimes has beaten occupants and destroyed property. Israeli authorities say that forced entry may occur lawfully only when incident to an arrest and when entry is resisted. Authorities say that beatings and arbitrary destruction of property during searches are punishable violations of military regulations, and that compensation is due to victims in such cases. The Israeli Government states that it does not keep consolidated information on the claims against the Ministry of Defense for damages resulting from IDF actions.

Israeli authorities did not demolish any Palestinian residences for security reasons during the year; it demolished one in 1998 and eight in 1997. Israeli security forces may demolish or seal the home (owned or rented) of a Palestinian suspected of terrorism without trial; however, they did not do so during the year. The decision to seal or demolish a Palestinian's house is made by several high-level Israeli officials, including the coordinator of the MATAK (formerly CIVAD) and the Defense Minister. Residents of houses ordered demolished have 48 hours to appeal to the area commander; a final appeal may be made to the Israeli High Court. A successful appeal generally results in the conversion of a demolition order to sealing. After a house is demolished military authorities prohibit the owner from rebuilding or removing the rubble. Israelis suspected of terrorism are subject to Israeli law and do not face the threat of home demolition.

In the Gaza Strip and PA-controlled areas of the West Bank, the PA requires the Attorney General to issue warrants for entry and searches of private property. These requirements frequently are ignored by Palestinian security services. PA police searched homes without the consent of their owners. In some cases, police forcibly entered premises and destroyed property.

In July and October the PA attempted to ban Gazan workers from working in Jewish settlements in the Gaza Strip. The PA claimed that Palestinian workers should not be allowed to expand Jewish settlements in Gaza and imposed a strike on Gazan day laborers. The PA stopped short of using force to prevent workers from entering the settlements; however, some laborers reported that they feared retribution by the authorities (see Section 2.d.).

PA security forces sometimes detained or placed under house arrest the relatives of alleged security criminals (see Section 1.d.).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Israeli Government generally respects freedom of speech in the occupied territories but prohibits public expressions of support for Islamic extremist groups, such as HAMAS and other groups dedicated to the destruction of Israel. Continuing a policy it began in 1994, the Israeli Government did not enforce its prohibition on the display of Palestinian political symbols, such as flags, national colors, and graffiti, acts that are still punishable by fines or imprisonment.

Overall, Israeli censorship of specific press pieces continued to be low. Israeli authorities monitor the Arabic press based in Jerusalem for security-related issues. Military censors review Arabic publications for material related to the public order and security of Israel. Reports by foreign journalists also are subject to review by Israeli military censors for security issues, and the satellite feed used by many foreign journalists is monitored.

Israel often closes areas to journalists when it has imposed a curfew or closure. Israeli authorities have denied entry permits to Palestinian journalists traveling to their place of work in Jerusalem during closures of the territories.

The IDF requires a permit for publications sold in the occupied territories still under its control. Publications may be censored or banned for content deemed anti-Semitic or anti-Israeli. Possession of banned materials is punishable by a fine and imprisonment. During the year, Israel refused to allow publications, including newspapers, into the Gaza Strip on the Jewish holiday of Yom Kippur, when Israel tightened its closure of the West Bank and Gaza Strip.

The PA limited freedom of speech and of the press, although it professes to tolerate varying political views and criticism. In a number of instances during the year, the PA took steps to limit free expression, particularly in regards to human rights issues and allegations of corruption. Press freedom in PA controlled areas is subject to a 1995 press law that does not adequately protect the press. PA security services further stifle the independence of the press by shutting down media outlets, banning publication or broadcast of material, and periodically harassing or detaining media members (see Section 1.d.). Palestinian commentators and human rights groups say that as a result, the practice of self-censorship by journalists is widespread.

In November PA security forces arrested eight persons and placed two under house arrest for signing a petition that accused the PA of corruption and failing to win significant gains from the peace process. The PA did not arrest the nine members of the Palestinian Council who also signed the petition and enjoyed parliamentary immunity. In December the PA released six of the signatories from detention; however, two remained in detention at year's end (see Section 1.d.).

In May the PA detained three editors of the Islamist Al-Risaleh newspaper after it published an article on police corruption. One of the editors, Ghazi Hamad, had been arrested earlier and held for several days for writing an article about alleged PA mistreatment of a Palestinian detainee.

In July PA police officials in Ramallah twice summoned Maher Alami, a West Bank journalist to inform him that his newspaper articles that were critical of the PA had angered the PA Chairman.

On August 5, PA officials arrested and detained human rights activist and commentator Iyad Sarraj after he published a newspaper article criticizing the PA's treatment of human rights organizations. He later was released, but PA authorities temporarily confiscated his passport.

In September police personnel arrested and held for several days four journalists after they reported unflattering stories about PA police officers. Human rights organizations charged that police personnel lacked the proper arrest warrants and that the arrests threatened freedom of the press.

In December the Palestinian Authority called the economics editor of Al-Quds newspaper in for questioning following the publication of a front-page article criticizing the PA Monetary Authority's takeover of the Palestine International Bank. The editor was released after questioning; however, the newspaper then published an article retracting some of its criticisms from the previous day.

On April 26, the PA closed the Amal television station in Hebron for nearly 3 weeks after it broadcast a controversial program on Islam. On May 17, PA officials closed the Al-Ru'ah television station in Bethlehem indefinitely after it aired a program that security officials said could cause tensions between Christians and Muslims.

On September 15, members of the Preventive Security Force (PSF) in Ramallah arrested television talk-show host Maher Adisouki shortly after he allowed a caller on his television program to criticize the PA's failure to persuade Israel to free all Palestinian prisoners held in Israeli jails. The Palestinian Society for the Protection of Human Rights and the Environment complained that the arrest warrant was not executed properly. Adisouki was held in PSF custody for 20 days. He alleged that during his incarceration he was forced to stand for several days with a dirty rag over his eyes and that he was beaten and threatened. PSF officials say that Adisouki was detained for security reasons, not because of the views expressed on his program, and they deny that he was mistreated.

Israeli-imposed closures, while less restrictive than in previous years, nevertheless disrupted the operations of West Bank and Gaza universities, colleges, and schools during the year. Students and staff had difficulty traveling to educational institutions in cities and towns closed or put under curfew by Israeli authorities.

Prior to November, Gaza students routinely were denied travel permits to attend West Bank universities. However, the November opening of the southern safe passage route between Gaza and the West Bank afforded Gazan students greater ability to pursue their education at West Bank educational institutions.

The PA has authority over all levels of education in the West Bank and Gaza Strip and it controls the budgets of all public colleges. The PA did not interfere with education in the West Bank and Gaza Strip during the year.

b. Freedom of Peaceful Assembly and Association

The Israeli Government places some limits on freedom of assembly. Israeli military orders ban public gatherings of ten or more persons without a permit. Since the 1993 signing of the Declaration of Principles, Israel has relaxed enforcement of this rule except in cases of Palestinian demonstrations against land seizures or settlement expansions.

Israeli security forces killed two Palestinian demonstrators and wounded about 2 dozen during the year (see Sections 1.a. and 1.c.). In June Israeli security forces shot and wounded 15 Palestinians in the West Bank and 2 in the Gaza Strip during the "days of rage" demonstrations protesting Israeli settlement activity in the occupied territories (see Section 2.b.). On November 20 Israeli soldiers shot and wounded 10 Palestinians at a protest organized by Fatah Youth in Ramallah (see Section 1.c.).

On May 27, Israeli security officials detained and later released Palestinian protesters participating in a demonstration against the construction of housing for Jews in a Palestinian neighborhood in East Jerusalem.

The PA imposes some formal limits on freedom of assembly; however, while it requires permits for rallies, demonstrations, and large cultural events, these permits rarely are denied. In Gaza police approval is required for "political" meetings at several specific large meeting halls. Written permission also is required for buses to transport passengers to attend political meetings. In West Bank cities, the PA requires permits for outdoor rallies and demonstrations and prohibits calls for violence, a display of arms, and racist slogans, although this is not always enforced.

In February hundreds of Palestinians held demonstrations in Nablus, Hebron, and Gaza to demand the release of administrative detainees in PA prison facilities (see Section 1.d.). In March hundreds of Palestinians protested the Palestinian court's decision to sentence one Palestinian security official to death and two to long prison terms for the killing of another Palestinian security official. Palestinian police shot and killed two protesters during the demonstrations (see Sections 1.a. and 1.e.).

Private Palestinian organizations are required to register with the Israeli authorities in areas under Israeli control, though some operate without licenses. The authorities permit Palestinian charitable, community, professional, and self-help organizations to operate unless Israeli authorities view their activities as a security problem. In previous years, Israeli authorities have forced some Palestinian organizations in East Jerusalem to close because of alleged links to the PA.

The PA reportedly placed some limits on freedom of association. There were periodic complaints during the year from Palestinian political parties, social and professional groups, and other NGO's that the PA tried to limit their ability to act autonomously (see Section 4).

In March 1996 Yasir Arafat outlawed the armed wings of several Palestinian political groups, including Islamic opposition groups. While it is not illegal to belong to the non-military components of Islamic opposition groups, during times of heightened security concern the Authority has harassed and even detained members of the political parts of these organizations.

c. Freedom of Religion

Israeli law provides for freedom of worship, and the Government generally respects this right in practice; it does not ban any group on religious grounds. It permits all faiths to operate schools and institutions. Religious publications are subject to the Publications Laws.

No PA law protects religious freedom; however, the PA generally respects freedom of religion. In past years, there have been allegations that several converts from Islam to Christianity at times are subject to societal discrimination and harassment by PA officials. The PA states that it investigates such complaints, but it has not shared or publicized the results of these investigations with any outside party. However, there was no pattern of PA discrimination and harassment against Christians (see Section 5).

d. Freedom of Movement Within the Occupied Territories, Foreign Travel, Emigration, and Repatriation

The Israeli Government places limits on freedom of movement. Israel requires that all West Bank and Gaza residents obtain permits to enter Israel and Jerusalem. However, Israel often denies applicants permits with no explanation, and does not allow effective means of appeal. In the past, Palestinian officials with VIP passes, including PA cabinet officials and members of the Palestinian Council, were subjected to long delays and searches at Israeli checkpoints in the West Bank, even though they were traveling on special passes issued by Israel; however, there were no reports that this occurred during the year. In general Palestinians in the West Bank and Gaza Strip find it difficult to obtain permits to work, visit, study, or obtain medical care in Israel. Palestinian residents of Jerusalem sometimes are prohibited by Israeli officials from entering PA-controlled areas of the West Bank, and they require written permits from Israel to travel to the Gaza Strip. Prior to the November opening of the safe passage route, residents of the Gaza Strip rarely were able to obtain permission to travel to the West Bank, or residents of the West Bank to enter the Gaza Strip; this was even true of residents of the West Bank and Gaza Strip who regularly received permission to enter Israel. Israeli authorities permit only a small number of Gazans to bring vehicles

into Israel and sometimes do not permit West Bank vehicles to enter Jerusalem or Israel. It is also difficult for Palestinians married to Jerusalem residents, but not themselves Jerusalem residents, to obtain permission to live there. A Palestinian with a West Bank identification card, for example, must apply to the Israeli Government for permission to live with his or her Jerusalem resident spouse in Jerusalem. The Israeli Government occasionally issues limited-duration permits and also issues a limited number of Jerusalem identification cards as part of its Family Reunification Program. Except for senior PA officials, and those using the safe passage to the West Bank, Palestinians of all ages crossing between the Gaza Strip and Israel are not permitted to travel by car across the main checkpoint. Instead, they must travel along a narrow walkway almost a mile long. Israelis moving into and out of the Gaza Strip are permitted to use their cars.

In November Israel and the PA implemented arrangements in the 1995 Interim Agreement to establish a safe passage route across Israel between the Gaza Strip and the southern West Bank. Negotiations are ongoing regarding the establishment of a safe passage route between the Gaza Strip and the northern West Bank. The safe passage route facilitates the movement of Palestinians between the West Bank and the Gaza Strip to work, study, and visit, and alleviates some of the problems associated with freedom of movement for Palestinians. However, some Palestinian human rights groups criticized the safe passage agreement because they believe it maintains certain limits on freedom of movement. As of the end of November, a total of 15,000 Palestinians received approval to use the safe passage route and 2,900 applicants were refused permits to use the route.

Israel continues to apply its policy, begun in 1993, of closure of the West Bank and the Gaza Strip following terrorist attacks; however, Israel eased its closure policy during the year. On occasion Israel also imposed a tightened version of closure in the wake of terrorist incidents and when it believed that there was increased likelihood of terrorist attacks or unrest in the occupied territories. During these times, Israel tends to cancel all travel permits and prevents Palestinians, even those with valid work permits, from entering Israel or Jerusalem. In the past, tightened closures severely hampered the flow of food, medicine, students, doctors, and patients into and out of the occupied territories, and seriously disrupted commercial activity. Israel imposed tightened closures before Israeli holidays, when officials claimed that an increased potential for terrorist attacks against Israelis existed, after security incidents in the occupied territories, and in anticipation of Palestinian unrest. In the past, Israel also imposed "internal" closures, which prohibited Palestinians from traveling between West Bank towns and villages; however, there were no "internal" closures during the year. Israel imposed tightened overall closure for a total of 15 days during the year. Even in the absence of internal closures, Palestinians who travel between some cities in the West Bank must pass through Israeli-controlled checkpoints where they sometimes are subjected to verbal and physical harassment by Israeli security personnel.

Israel imposed a closure on Hebron for a number of days after settlers were shot and injured in separate shooting attacks in January and August (see Section 1.c.). In both instances it placed the Israeli-controlled section of the downtown under curfew, confining large numbers of Palestinians to their homes while Israelis were generally free to move about. Following a terrorist attack in January that wounded two Israeli settlers, Israel placed checkpoints on major roads leading into Hebron and prevented Palestinians from moving in or out of the city. This closure and accompanying curfew imposed on residents in the Israeli-controlled section of the downtown area lasted for 7 days and interfered with Palestinians' ability to attend school, travel, and conduct business.

Israel also imposed a closure on the West Bank and Gaza for security reasons prior to and during several Jewish holidays during the year.

For 4 days in June and July, Israeli security forces prevented Palestinian officials from passing through checkpoints on the outskirts of Nablus in response to PA officials' refusal to allow Israeli settlers access to the yeshiva at Joseph's tomb, a site holy to both Jews and Muslims.

During part of the year, the IDF prevented Palestinians from walking on part of Shuhada Road in Hebron, while allowing Israeli settlers access to this road; however, in November this road was opened to Palestinians.

In September 1998 Israel began implementing a "continuous employment program" that allows selected Palestinian workers who have been approved by the Ministry of Defense and who are married, are over 28 years old, and have worked in Israel a long time, to enter Israel to work in the event of a tightened closure. Under this program, these workers can renew their entry permits within a few days, rather than within the several days to weeks that previously was the case.

The Israeli Government continued to restrict the movements of two Jewish settlers living in the occupied territories who belonged to the extremist Kach or Kahane Chai groups, through the use of administrative orders issued by the IDF central command. The Israeli Government requires all Palestinian residents in areas under its control to obtain permits for foreign travel and has restricted the travel of some political activists. Bridge-crossing permits to Jordan may be obtained at post offices without a screening process. However, some East Jerusalem Palestinians hesitate to travel due to fear of losing their residency permits. Palestinian males between the ages of 16 and 25 who cross into Jordan must remain outside the occupied territories for 9 months. Restrictions on residence, reentry, and family reunification only apply to Palestinian residents of the occupied territories.

Palestinians who live in the part of Jerusalem that was occupied during the 1967 War generally do not accept Israeli citizenship. They are, therefore, issued a residence permit or Jerusalem identification card by the Israeli Government. Israel applies the 1952 Law of Permanent Residency and its 1974 amendments to Jerusalem identification card holders. This law stipulates that a Jerusalem resident loses the right of residence if the resident leaves Israeli territory for more than 7 years, acquires the nationality of another country, or acquires permanent residence in another country. Such persons are permitted to return only as tourists and sometimes are denied entry. The Israeli Government does not apply these same restrictions to Israeli citizens. Invoking the 1952 law as legal justification, the Israeli Interior Ministry has stripped residency rights from hundreds of East Jerusalem Palestinians. In recent years, the pace of revocations increased as the Ministry applied restricted policies, including a "center of life" test to determine whether Palestinians were eligible to retain their identification cards. The Ministry's policy has been the subject of numerous lawsuits, including one considered by the High Court of Justice during the year. In October the newly appointed Minister of Interior, Natan Sharansky, announced that the Ministry would no longer apply the "center of life" criteria used previously to revoke the residency rights of East Jerusalem Palestinians. There reportedly were no identification card revocations after October. During the year, there were 394 revocations compared with 788 revocations in 1998.

Israeli authorities also place restrictions on family reunification. Most Palestinians who were abroad before or during the 1967 War, or who have lost their residence permits for other reasons, are not permitted to reside permanently with their families in Jerusalem or the occupied territories. Foreign-born spouses and children of Palestinian residents also experience difficulty in obtaining permission to reside with their family members. However, at the beginning of the year the Israeli Government raised the quota for family reunification applications from 1,200 to 2,400 in the West Bank.

Israeli security authorities single out young (often unmarried) Palestinian males for more stringent restrictions than other Palestinians, citing them as more likely to be security risks. They generally are prohibited from working in Israel.

The PA issues passports and identification cards for Palestinians residing in the West Bank and Gaza. Bearers of Palestinian passports do not need special exit permits from the PA, but when leaving through Ben Gurion Airport they do require permits in order to transit Israel to reach the airport.

Palestinians who hold Jerusalem identification cards, issued by the Israeli Government, must obtain travel documents from the Israeli Government to travel abroad. Human rights groups report that Palestinian residents of East Jerusalem often do not apply for Israeli travel documents because they fear that their application might prompt a reexamination of their residency status and lead to the revocation of their identity cards. On request, the Jordanian Government also issues travel documents to West Bank Palestinians, including those resident in formerly Jordanian-controlled East Jerusalem. Palestinians who wish to travel to Jordan must leave their Israeli identification documents with Israeli authorities at the Allenby Bridge. There is also a requirement that Jerusalem Palestinians have a special permit to cross the Allenby Bridge, available for \$40 (125 NIS) from the Ministry of Interior. Palestinians who are residents of the West Bank or the Gaza Strip are not allowed to cross between Israel and Jordan at the Sheikh Hussein or Arava crossings.

Palestinians who reside in the West Bank or Gaza are required by Israel to exit and enter with a Palestinian passport. When Israel tightened its closure of the West Bank and Gaza Strip during the year, the Government at times restricted the entry and departure of Palestinians, even those with passports from other countries.

In July and October, the PA attempted to ban Gazan workers from working in Jewish settlements in the Gaza Strip. The PA claimed that Palestinian workers should not be allowed to expand Jewish settlements in Gaza and imposed a strike on Gazan day laborers. The PA stopped short of using force to prevent workers from entering the settlement; however, some laborers reportedly feared retribution by the authorities (see Section 1.f.).

The issues of refugees and borders are matters to be discussed between Israel and the PA in permanent status negotiations.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Palestinian residents of the West Bank, Gaza Strip, and Jerusalem chose their first popularly-elected government in 1996. They elected an 88-member Council and the Ra'ees (President or Chairman) of the Executive Authority of the Council. Yasir Arafat won almost 89 percent of the vote in a two-person race for Chairman. Some 700 candidates ran for Council seats. Council members were elected in multimember electoral districts. As many as 35 of the elected members were independent candidates or critics of Arafat and his Fatah faction. International observers concluded that the election could reasonably be regarded as an accurate expression of the will of the voters, despite some irregularities. During the year, the Council debated numerous draft laws and resolutions. Some members of the Council complained of its relative lack of power in relation to the executive branch of government.

Municipal elections were tentatively scheduled to be held in June; however, they did not take place.

Most Palestinians in Jerusalem do not recognize the jurisdiction of the Municipality of Jerusalem. Only a very small percentage of Jerusalem's Palestinian population vote in the municipal council elections. No Palestinian resident of Jerusalem sits on the City Council.

Women are underrepresented in government and politics. There are 5 women in the 88-member Council, and 1 woman serves in a ministerial-level position.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Many local groups -- Israeli, Palestinian, and international -- monitored the Israeli Government's human rights practices. The Israeli Government cooperates with human rights organizations; officials normally agree to meet with human rights monitors. The Israeli Government permits human rights groups to publish and hold press conferences. There were no reports during the year that the Israeli Government harassed human rights workers.

Local human rights groups, most of which are Palestinian, as well as several international human rights organizations, monitored the PA's human rights practices. The PA generally cooperates with these organizations and PA officials usually meet with their representatives. Several Palestinian human rights organizations work behind the scenes with the PA to overcome abusive practices in certain areas. They also publish criticism if they believe that the PA is not responding adequately to private entreaties. Human rights groups state that the PA is generally cooperative when dealing with certain kinds of human rights issues; however, human rights organizations reported that they sometimes were denied access to detainees in Palestinian prisons during the year. LAW and the Palestinian Centre for Human Rights (PCHR) reported that they were denied access to clients detained in Gaza prisons because of their reports on the violations of the human rights of detainees (see Section 1.d.).

Other human rights groups, including the ICRC and the Palestinian Independent Commission for Citizens' Rights, visited PA prisons and detention centers on a regular basis. However, PA officials are said to be less responsive to queries on the PA's policies towards and treatment of members of Islamist opposition groups.

During the year, Palestinian nongovernmental organizations repeatedly called on the PA to ratify a law passed by the Palestinian Council (PC) in December 1998, which would govern the NGO's activities and their relations with the PA. Ratification of the law was held up due to the PA's attempts to replace the Ministry of Justice with the Ministry of Interior as the agency responsible for the administration of NGO's. At year's end, passage of the law appeared imminent.

The ICRC operates in the PA areas under the terms of a memorandum of understanding signed in September 1996 between the ICRC and the PLO. The memorandum accords the ICRC access to all detainees held by the PA and allows regular inspections of prison conditions. In accordance with the agreement, the ICRC conducted routine visits of PA-run prison facilities and to PA-held prisoners throughout the year.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

Under the complex mixture of laws and regulations that apply to the occupied territories, Palestinians are disadvantaged under Israeli law and practices compared with the treatment received by Israeli settlers. This includes discrimination in residency, land use, and access to health and social services.

Women

The problems of rape, domestic violence, and violence related to "family honor" have gained greater attention in the Palestinian community, but public discussion generally remains muted. Victims often are encouraged by relatives to remain quiet and are themselves punished or blamed for the "shame" that has been brought upon them and their families. In 1998 a 14-year-old girl who was raped subsequently was beaten to death by her uncle and brother to "protect" family honor. The girl's brother was awaiting trial on murder charges. Women's groups seek to educate women on these problems, but women's rights advocates claim that few resources are available to shelter the victims of violence because women's shelters are not accepted culturally in Palestinian society. They also maintain that society has not been receptive to providing counseling or outreach services to victims of problems that these advocates see as more widespread than is acknowledged. According to women's groups, there are no reliable data on the incidence of violence against women. Spousal abuse, sexual abuse, and "honor killings" occur, but societal pressures prevent most incidents from being reported and most cases are handled within the families concerned, usually by male family members. In prior years, leaders of HAMAS threatened and tried to intimidate Palestinian women who were involved in programs aimed at empowering women and helping abused women; there were no reports that this occurred during the year. Palestinian women in both the Israeli- and PA-controlled areas of the occupied territories endure various forms of social prejudice and repression within their own society. Because of early marriage, girls frequently do not finish the mandatory level of schooling. Cultural restrictions sometimes prevent women from attending colleges and universities. While there is an active women's movement in the West Bank, attention has shifted only recently from nationalist aspirations to issues that greatly affect women, such as domestic violence, equal access to education and employment, and laws concerning marriage and inheritance.

A growing number of Palestinian women work outside the home, where they tend to encounter discrimination. There are no special laws providing for women's rights in the workplace. Women are underrepresented in most aspects of professional life. Despite the fact that there is a small group of women who are prominent in politics, medicine, law, teaching, and NGO's, women for the most part are underrepresented seriously in the decisionmaking positions in these fields.

Personal status law for Palestinians is based on religious law. For Muslim Palestinians, personal status law is derived from Shari'a (Islamic law) and ecclesiastical courts rule on personal status issues for Christians. In the West Bank and Gaza, Shari'a pertaining to women is part of the Jordanian Status Law of 1976, which includes inheritance and marriage laws. Under the law, women inherit less than male members of the family do. The marriage law allows men to take more than one

wife, although few do so. Women are permitted to make "stipulations" in the marriage contract to protect them against divorce and questions of child custody. However, only an estimated 1 percent of women take advantage of this section of the law, leaving most women at a disadvantage when it comes to divorce or child custody.

Children

The Israeli Government's permit policies also affect Palestinian schools. In June the Israeli Government issued a stop-work order to an Area C Palestinian school that was trying to build new bathrooms for its 600 students; the school had no usable facilities. In this case, Palestinian school officials did not apply for a building permit because they believed that they would not receive one. During the year, there were ongoing negotiations about the Hope Flowers school in Bethlehem. Parts of the school, including the kitchen, were built without a permit and the Israeli Government issued orders to demolish these parts. However, due to the high profile of the case, the Government did not demolish any parts of the school by year's end.

The PA requires compulsory education up to 12 years of age. However, early marriage frequently prevents girls from completing the mandatory level of schooling. Currently British Mandate, Jordanian, and military laws, from which West Bank and Gaza law is derived, offer protection to children under the Labor and Penal Codes. Existing laws designed to protect children, such as a law that sets the minimum employment age, are not always enforced. While there is no juvenile court system, judges specializing in children's cases generally sit for juvenile offenders. In cases where the child is the victim, judges have the discretion to remove the child from a situation deemed harmful. However, the system is not advanced in the protection afforded children.

There is no societal pattern of abuse of children among Palestinians.

People With Disabilities

There is no mandated accessibility to public facilities in the occupied territories under either Israeli or Palestinian authority. Approximately 130,000 Palestinians in the West Bank and Gaza are disabled. Some Palestinian institutions care for and train disabled persons; however, their efforts are chronically underfunded. Many Palestinians with disabilities are segregated and isolated from Palestinian society; they are discriminated against in most spheres, including education, employment, transportation, and access to public buildings and facilities.

Religious Minorities

There are periodic allegations that a small number of Muslim converts to Christianity in the Palestinian community sometimes are subject to societal discrimination and harassment by PA officials. The PA states that it investigates such complaints, but it has not shared or publicized the results of these investigations with any outside party. However, there was no pattern of PA discrimination and harassment against Christians (see Section 2.c.).

Section 6 Worker Rights

a. The Right of Association

Labor affairs in the West Bank came under Palestinian responsibility with the signing of the Interim Agreement in September 1995. Until a new law being drafted by PA authorities comes into effect, labor affairs in the West Bank are governed by Jordanian Law 21 of 1965, as amended by Israeli military orders, and in Gaza by PA decisions. The law permits workers to establish and join unions without government authorization. The earlier Israeli stipulation that all proposed West Bank unions apply for a permit no longer is enforced. Israeli authorities previously have licensed about 35 of the estimated 185 union branches now in existence. Following a process to consolidate trade unions in the West Bank, there are now 12 trade unions there.

Palestinian workers in Jerusalem are governed by Israeli labor law. They are free to establish their own unions. Although the Government restricts Jerusalem unions from joining West Bank trade union federations, this restriction has not been enforced. Palestinian workers in Jerusalem may belong simultaneously to unions affiliated with West Bank federations and the Israeli Histadrut Labor Federation.

West Bank unions are not affiliated with the Israeli Histadrut Federation. Palestinians from the West Bank and Gaza who work in Israel or Jerusalem are not full members of Histadrut, but they are required to contribute 1 percent of their wages to Histadrut. Negotiations between Histadrut and West Bank union officials to return half of this fee to the Palestinian Union Federation were completed in 1996, but funds have yet to be transferred.

Palestinians who work in Israel are required to contribute to the National Insurance Institute (NII), which provides unemployment insurance and other benefits. Palestinians from the West Bank and Gaza are eligible for some, but not all, NII benefits. According to the Interim Agreement, Palestinians working in Israel and Jerusalem continue to be insured for injuries occurring in Israel, the bankruptcy of a worker's employer, and allowances for maternity leave. The Israeli Government has transferred the NII fees collected from West Bank and Gazan workers to the PA, which is to assume responsibility for their pensions and social benefits.

There are outstanding cases of Palestinian workers who have attempted to sue their Israeli employers for non-payment of wages but are unable to travel to the relevant courts because they are unable to receive the proper permits.

The great majority of West Bank unions belong to the Palestinian General Federation of Trade Unions (PGFTU). The PGFTU was involved in the completion of the negotiations with Histadrut regarding workers' fees. The reorganization of unions under the PGFTU is intended to enable the West Bank and Gaza unions to better represent the union members' interests; the reorganization had not yet been finalized at year's end.

An estimated 88,000 workers in the West Bank are members of the PGFTU, the largest union bloc, which consists of 12 trade unions in the West Bank and 8 in Gaza. The organization has 43,455 members in Gaza. The PGFTU estimates actual organized membership, i.e., dues-paying members, at about 30 percent of all Palestinian workers.

No unions were dissolved by administrative or legislative action during the year. Palestinian unions that seek to strike must submit to arbitration by the PA Ministry of Labor. If the union disagrees with the final arbitration and strikes, a tribunal of senior judges appointed by the PA decides what, if any, disciplinary action is to be taken. There are no laws in the territories that specifically protect the rights of striking workers. In practice, such workers have little or no protection from an employer's retribution.

The PGFTU has applied for membership in the International Confederation of Free Trade Unions (ICFTU).

b. The Right to Organize and Bargain Collectively

A majority of workers in the occupied territories are self-employed or unpaid family helpers in agriculture or commerce. Only 35 percent of employment in the territories consists of wage jobs, most with the United Nations Relief and Works Agency (UNRWA), the PA, or in municipalities. Collective bargaining is protected. Labor disputes are adjudicated by committees of three to five members in businesses employing more than 20 workers.

Existing laws and regulations do not offer real protection against antiunion discrimination.

One industrial zone is in operation in the Gaza Strip and others in the West Bank are being developed.

c. Prohibition of Forced or Compulsory Labor

PA law does not prohibit specifically forced or compulsory labor, including by children, but there were no reports of such practices during the year (see Section 6.d.).

d. Status of Child Labor Practices and Minimum Age for Employment

The minimum working age in the West Bank and Gaza is 14 years. Most observers agree that a significant number of Palestinian children under the age of 16 years work. Many children under the age of 12 are engaged in some work activities. Most of this employment is believed to involve work on family farms, in family shops, or as urban street vendors. Some employment of children also is reported to occur in small manufacturing enterprises, such as shoe and textile factories. The law does not prohibit specifically forced or compulsory labor by children, but there were no reports of its use (see Section 6.c.).

The PA's capacity to enforce existing laws is limited. It has only 40 labor inspectors to inspect an estimated 65,000 enterprises. The International Labor Organization and UNICEF are working with the PA to study the nature and extent of the problem and to develop the capacity to enforce and update child labor laws.

e. Acceptable Conditions of Work

There is currently no minimum wage in the West Bank or Gaza Strip. The average wage for full-time workers appears to provide a worker and family with a decent standard of living.

In the West Bank, the normal workweek is 48 hours in most areas; in Gaza the workweek is 45 hours for day laborers and 40 hours for salaried employees. There is no effective enforcement of maximum workweek laws.

The PA Ministry of Labor is responsible for inspecting work places and enforcing safety standards in the West Bank and Gaza. The Ministry of Labor states that new factories and work places meet international health and safety standards but that older ones fail to meet minimum standards. In October a fire in an unlicensed workshop in Hebron where cigarette lighters were being assembled killed 14 workers, all of them young women. The fire illustrated the prevalence of sweatshops in the PA and unregulated labor practices. There is no specific legal protection afforded workers that allows them to remove themselves from an unhealthy or unsafe work setting without risking loss of employment.

f. Trafficking in Persons

The law does not prohibit trafficking in persons; however, there were no reports that persons were trafficked in, to, or from the occupied territories.

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